

CUI

ATTENTION

Use this space to indicate categories, limited dissemination controls,
special instructions, points of contact, etc., if needed.

Component: Directorate of Contracting
Controlled by: USACE-LRL-CT
CUI Category: General Procurement and Acquisition
Distribution Statement: FED ONLY
POC: Marcel Hull- [REDACTED]

ATTENTION

All individuals handling this information are required to protect
it from unauthorized disclosure.

Handling, storage, reproduction, and disposition of the attached document(s) must
be in accordance with 32 CFR Part 2002 and applicable agency policy.

Access to and dissemination of Controlled Unclassified Information shall be
allowed as necessary and permissible to any individual(s), organization(s), or
grouping(s) of users, provided such access or dissemination is consistent with or in
furtherance of a Lawful Government Purpose and in a manner consistent with
applicable law, regulations, and Government-wide policies.

Standard Form 901 (11-18)
Prescribed by GSA/ISOO | 32 CFR 2002

CUI

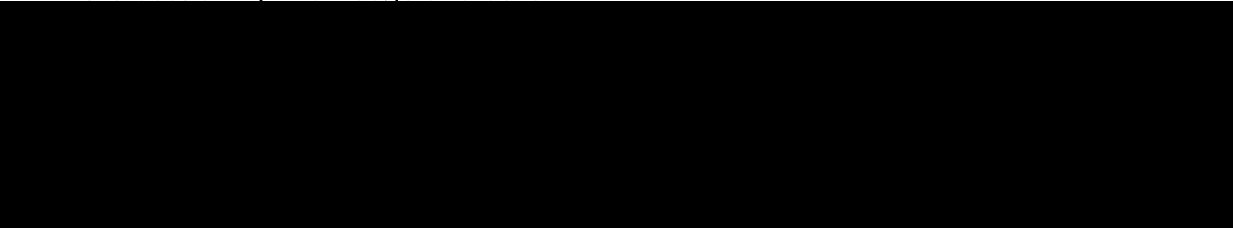
**JUSTIFICATION AND APPROVAL (J&A)
FOR OTHER THAN FULL AND OPEN COMPETITION**

1. **Contracting Agency:** U.S. Army Corps of Engineers (USACE), Louisville District, Post Office Box 59, Louisville, Kentucky 40201-0059.
2. **Description of Action:** This is a request for a sole source purchase for a Cummins Tier 4 Diesel Generator to be used on a project for the renovation and addition of the Aircrew Readiness Facility at Beale Air Force Base. The Cummins Tier 4 Diesel Generator is compatible with the current Beale AFB infrastructure. The Cummins Tier 4 Diesel Generator supports this facility. [REDACTED] funding will be used to construct this project.

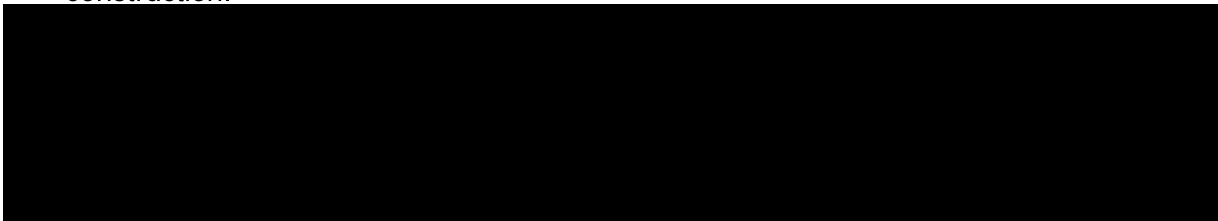
Description of Supplies/Services: The Cummins Tier 4 Diesel Generator is required on base and meets the Beale Air Force Base Standard. The estimated ownership cost of Backflow Prevention Assembly is [REDACTED].
3. **Authority Cited:** 10 U.S.C. 3204(a)(1), as implemented by FAR 6.302-1(a)(2). Only one responsible source and no other supplies or services will satisfy agency requirements.
4. **Reason for Authority Cited:**
 - a) **Justification:** The current approved system has been fully tested and verified to provide full combination of Cummins Tier 4 Diesel Generator capabilities that meet the requirements of Beale AFB Design Compatibility Guidelines and Beale AFB has confirmed that the Cummins Tier 4 Diesel Generator is the only Generator that will satisfy its requirements.
 - b) **Impact:** For the new Aircrew Readiness Facility to be standardized with the rest of the base and Life Safety systems at Beale AFB, the Diesel Generator must be compatible with the equipment used on the rest of the base. Failure to establish adequate compatibility will result in delayed emergency response times and increase risk for failure of back-up electrical systems.
 - c) **Alternatives:** None viable to achieve a fully functioning system for the reasons noted above in paragraph 4. a) and b).
5. **Efforts to Obtain Competition:** None, for the reasons cited above.
6. **Actions to Increase Competition:** This is a finite requirement with no future needs, and therefore there are no actions to increase future competition.
7. **Market Research:** Market Research was not conducted.
8. **Interested Sources:** To date no other sources have been identified. A Notice of Intent to Sole Source was posted to SAM.gov on 16 July 2024 with a response date

of 31 July 2024. To date, no other sources have written to express interest. If prior to issuance of the solicitation, responses are received expressing interest, the justification will be amended.

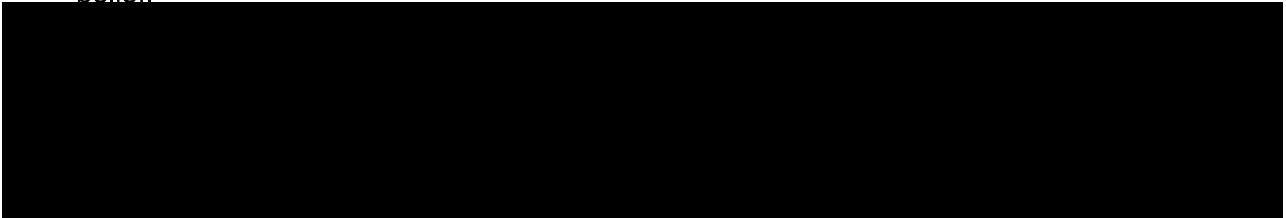
- 9. Technical Certification:** I certify that the supporting data under my cognizance, which are included in the Justification and Approval, are accurate and complete to the best of my knowledge and belief.



- 10. Requirements Certification:** I certify that the supporting data under my cognizance, which are included in the Justification and Approval, are accurate and complete to the best of my knowledge and belief. At time of evaluating proposal price, the overall proposed price will be evaluated for fair and reasonableness. I recommend this approach to the prompt attainment of services for the upcoming construction.



- 11. Contracting Officer Certification & Fair and Reasonable Determination:** I certify that this justification is accurate and complete to the best of my knowledge and belief.



- 12. Legal Review and Concurrence:** I hereby determine that the information herein is legally sufficient, and I concur with the sole source procurement.

